

Shakti Kumar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 August 2022 · Writ - C No. 23342 of 2022 · **Writ disposed; 6.8 objection liberty with eight-week stay.**

HEADNOTE

A writ seeking quashing of a recovery certificate issued against the petitioner's late father was disposed of without opinion on merits. The petitioner was given liberty to object under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the objection, if filed, is to be decided after hearing within the next four weeks, with no coercive action for eight weeks or until that disposal, whichever is earlier.

FACTUAL SUMMARY

The petitioner, son of late Virendra Mohan, invoked the writ jurisdiction of the Allahabad High Court to quash a recovery certificate dated 4 December 2021 issued by the distribution licensee against his deceased father, and to restrain harassment in execution of that certificate. Counsel for the Power Distribution Corporation stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

statutory objection to demand and recovery

HOLDING

Without expressing any opinion on merits, the Court disposed of the writ with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent No.3 within four weeks; such objection, if filed in time, is to be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing, and no coercive action is to be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court directed a time-bound, heard disposal of a Para 6.8 objection to the recovery demand and stayed coercive action for eight weeks or until that disposal, whichever is earlier. ¶ 1

para-6.8-objection-alternate-remedy The writ was disposed of without merits by relegating the petitioner to the statutory objection under Para 6.8 of the Supply Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 04.12.2021 AND THE DEMAND AGAINST THE PETITIONER'S LATE FATHER

The Court expressly declined to express any opinion on merits. ¶ 1